

arose from counsel's failures, and not Atchison's.

Atchison's showing amounts to a claim of attorney malpractice. CCP section 473(b) does not provide relief for professional negligence, and Atchison's recourse, if any, is against its former counsel. Additionally, as Defendant points out, Atchison's request to modify the sanctions order amounts to an untimely request for reconsideration, which had to have been filed within ten days of service of the Court's order and based on "new or different facts, circumstances, or law." (CCP § 1008(a).)

Atchison missed this jurisdictional deadline by several months, and it offers no facts that were not available at the time of the discovery hearing. The requirements for reconsideration are therefore not met.

Disposition

Based on the foregoing, the motion is **denied**.

4. 9:00 AM CASE NUMBER: C23-02289
CASE NAME: PROGRESSIVE WEST INSURANCE COMPANY VS. CRAIG CROSBY
HEARING ON SUMMARY MOTION
FILED BY:
TENTATIVE RULING:

Defendant Craig Crosby's Motion for Summary Judgment on Plaintiff Progressive West Insurance Company's Complaint is **granted**.

Background

Progressive issued a motorcycle insurance policy, policy number 44055053, to Mr. Crosby for many years, which was renewed annually (the "Policy"). (Separate Statement in Support of Motion for Summary Judgment ("SS") A11.) The Policy provided multiple coverages, including uninsured and underinsured motorist coverage. (Decl. of Crosby, ¶ 3.)

In late 2022, Mr. Crosby's wife gave him a golf cart as a gift (the "Golf Cart"). (Decl. of Crosby, ¶ 2.) Mr. Crosby planned to use the Golf Cart at his local golf course. (Decl. of Crosby, ¶¶ 2, 3.) The golf course required all golf carts to carry liability insurance. (Id.) To comply with this requirement, Mr. Crosby called Progressive on January 2, 2023 to add the Golf Cart to his existing policy. (SS B3.) The Progressive agent informed Mr. Crosby that the Golf Cart would need to be insured under his motorcycle policy. (SS B4.)

During that call, Progressive asked Mr. Crosby a series of questions about the Golf Cart. The agent asked whether it would be registered for street use, to which Mr. Crosby responded that it would not be. (SS B5.) Progressive asked whether it would exceed 20 miles per hour, and Mr. Crosby stated that it went approximately 15 miles per hour "tops" and that it was electric. (SS B5, B7.) When asked whether it had a VIN, Mr. Crosby explained that he had searched for one and had been unable to find it. (Decl. of Schwartz, Exh. A, p. 16, lines 19–28.) When asked, "so we don't know if we have a state assigned VIN number, right?", Mr. Crosby replied, "Well it's not street legal so I highly doubt a VIN number." (SS B8.) He informed Progressive that the Golf Cart was a used 2013 EZ Go TXT golf cart. (SS B5.)

In response to the question, “Does the vehicle have a modified frame or has its performance been enhanced with nitrous oxide, a turbocharger, or a supercharger?”, Mr. Crosley responded, “No, it’s stock.” (SS B6.) He further informed Progressive that the Golf Cart would be stored in his garage at his home in Discovery Bay. (SS B5.) Based on the insurance requirements of his golf course and the coverages offered by Progressive, Mr. Crosley increased his liability limits to a \$500,000 combined single limit, which resulted in a corresponding \$500,000 limit for uninsured/underinsured motorist coverage under the Policy. (Decl. of Crosley, ¶ 3.)

Prior to the January 2, 2023 call, Mr. Crosley had searched the Golf Cart for a VIN. (Decl. of Schwartz, Exh. A, p. 16, lines 21–27.) Despite examining the vehicle, he was unable to find one. (*Id.*) In fact, the Golf Cart, as a golf cart not registered for street use, did not have a VIN. (SS A6.)

Progressive nonetheless added the Golf Cart to the Policy without a VIN. (SS B9.) Progressive provided Mr. Crosley with information regarding the increased premiums for the remainder of the policy period, which ended on March 1, 2023, and the premium to be charged for the renewal period from March 1, 2023 to March 1, 2024. (SS B10.) That same day, Progressive issued two letters acknowledging that the Golf Cart had been added to the Policy. In the second letter, Progressive stated: “We don’t have accurate vehicle identification numbers (VINs) for the vehicles listed below... please provide us with a valid VIN for the following vehicles: 2013 E-Z GO GOLF CART MODELS,” and requested a response by February 4, 2023. (SS B11, D7.) Progressive charged Mr. Crosley the increased premium for adding the Golf Cart. (SS B10–12.)

Progressive did not cancel the Policy at that time. (SS D8.) Instead, despite not having a VIN, Progressive renewed the Policy for the March 1, 2023 to March 1, 2024 policy period. (SS D9.) The renewal declarations page listed the Golf Cart as a covered vehicle and stated “VIN: Not Provided,” and reflected a separate premium for the Golf Cart. (Decl. of Crosley, Exh. D.) The renewal notice did not state that the VIN needed to be provided. (*Id.*)

On March 2, 2023, Progressive issued a letter to Mr. Crosley stating, “We have received the information you sent – Thank you. However, we can’t use it because the proof provided is not valid,” and again requesting that Mr. Crosley provide a valid VIN for the “2013 E-Z GO GOLF CART MODELS.” (SS A5.)

On May 7, 2023, Progressive purportedly cancelled the Policy based on a failure to provide a VIN for the Golf Cart. (SS A11.) The Policy permits mid-term cancellation only for specified reasons, including “a substantial increase in the hazard insured against as defined by Section 2632.19 of the Regulations of the California Insurance Commissioner, as amended.” (SS A4.)

In its denial letter addressing the claim at issue in the cross-complaint, Progressive explained that it was refusing payment “because you did not comply with our request for additional information needed to verify a vehicle on your policy,” and stated that Mr. Crosley did not provide the “VIN or registration number.” (SS B18.)

On May 24, 2023, Mr. Crosley was riding his motorcycle when he was injured in a serious accident. (Decl. of Schwartz, Exh. A, p. 19, lines 4–5.) Mr. Crosley was informed that the at-fault driver did not carry liability insurance. (*Id.*) After tendering a claim for uninsured/underinsured motorist benefits, Progressive issued a letter stating that “there may be no coverage because your policy canceled prior to the accident.” (*Id.* at pp. 7–8, 14–19.) Progressive has continued to deny coverage. (*Id.* at p. 20, lines 7–8.)

Crosley moved for summary judgment, contending that Progressive lacked authority to cancel the Policy

mid-term under California insurance law and regulations. Crosley advances multiple theories, including that: (1) the Golf Cart did not have a VIN and Progressive's demand for a VIN was not reasonable; (2) a VIN was not necessary to underwrite or classify the risk; (3) Progressive's written requests did not comply with regulatory requirements due to the absence of a Spanish translation; (4) cancellation was barred by 10 CCR section 2632.19(a)(8) because the addition of a vehicle does not constitute a substantial increase in hazard; and (5) cancellation was barred by section 2632.19(e) because Progressive renewed the Policy with notice of the condition later relied upon for cancellation.

Progressive opposed the motion, arguing that cancellation was justified because Crosley failed to provide underwriting information necessary to classify the vehicle risk. Progressive contends it sought not only a VIN, but also another numeric identifier, such as a serial or model number, to confirm that the vehicle was a golf cart rather than a higher-risk vehicle. Progressive further argues that the cancellation was based on Crosley's failure to provide requested information after renewal and therefore was not barred. Progressive also contends its correspondence satisfied applicable regulatory requirements, including the Spanish-language requirement. Crosley does not contend that he is unable to understand English or that he failed to understand the substance of Progressive's requests.

Progressive's operative complaint seeks declaratory relief that it validly cancelled the Policy prior to the accident and therefore owed no coverage on the date of loss. Crosley moves for summary judgment in his favor on the complaint. Although Crosley has filed a cross-complaint asserting additional claims, the present motion is directed to Progressive's claim for declaratory relief.

After the motion for summary judgment was filed, Progressive filed a motion for leave to amend the complaint, seeking to conform its pleaded theory to the broader theory advanced in opposition to summary judgment, namely, that cancellation was based on Crosley's failure to provide a VIN or other numeric identifier and that renewal of the Policy was conditional.

Crosley opposed Progressive's request for leave to amend on the ground that the proposed amendment would assert a new theory not pleaded in the complaint. Crosley argued that Progressive's declaratory relief claim was limited to the theory that it lawfully cancelled the Policy mid-term based on a failure to provide underwriting information, and that Progressive could not, after summary judgment briefing, shift its theory to avoid an adverse ruling.

For the reasons set forth below, the court concludes that Progressive lacked statutory authority to cancel the Policy mid-term and grants Crosley's motion for summary judgment. Because summary judgment is granted, Progressive's motion for leave to amend is denied as moot and, in any event, futile.

Standard

Any party to an action may move for summary judgment. (Code Civ. Proc., § 437c, subd. (a)(1); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (*Aguilar*)). The object of the summary judgment procedure is "to cut through the parties' pleadings" to determine whether trial is necessary to resolve their dispute. (*Ibid.*)

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty" (Code Civ. Proc., § 437c, subd. (f)(1).) "A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." (*Id.*, subd. (f)(2).)

"[T]he party moving for summary judgment bears an initial burden of production to make a prima facie

showing of the nonexistence of any triable issue of material fact." (*Aguilar, supra*, 25 Cal.4th at p. 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.*, at p. 851.) A defendant moving for summary judgment may satisfy its initial burden either by producing evidence of a complete defense or by showing the plaintiff's inability to establish a required element of the case. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar*, at p. 853.)

If a moving defendant makes the necessary initial showing, the burden of production shifts to the plaintiff to make a prima facie showing of the existence of a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); see *Aguilar, supra*, 25 Cal.4th at p. 850.) If the plaintiff opposing summary judgment presents evidence demonstrating the existence of a disputed material fact, the motion must be denied. (*Id.*, at p. 856.)

In evaluating the summary judgment motion and opposition, the trial court "must consider all of the evidence and all of the inferences drawn therefrom." (*Aguilar, supra*, 25 Cal.4th at p. 856.) The moving party's evidence is strictly construed, while the opponent's is liberally construed. (*Id.* at p. 843.)

Analysis

Crosley advances multiple arguments in support of summary judgment, all directed at Progressive's claim that it owed no obligations because the policy purportedly cancelled effective May 7, 2023 based on a failure to provide vehicle identification information. The Court resolves the motion on a narrower ground and that is whether Progressive had statutory authority to cancel Crosley's policy mid-term. The court concludes that it did not.

Progressive argues it had statutory authority to cancel the Policy mid-term because Crosley's failure to provide requested vehicle identification information after renewal constituted a substantial increase in the hazard insured against under 10 CCR section 2632.19(b)(1). Progressive contends that it renewed the Policy on a conditional basis while continuing to seek information it believed necessary to underwrite or classify the risk, and that Crosley's post-renewal noncompliance created a new underwriting hazard arising during the policy period. Progressive further frames Crosley's position as one of waiver or estoppel and argues that triable issues of fact preclude summary judgment.

Crosley responds that Progressive's waiver and estoppel arguments misstate the issue, which is governed by the regulatory timing limitation in 10 CCR section 2632.19(e). Crosley argues that the regulation does not recognize a conditional renewal and that Progressive renewed the Policy while knowing it lacked the information it later relied on as the basis for canceling the policy. According to Crosley, the continued absence of that information after renewal cannot constitute a post-renewal substantial increase in hazard where the condition existed and was known at the time of renewal.

California insurance law limits an insurer's ability to cancel an automobile policy once issued or renewed. Under the law, an insurer may cancel mid-term only under narrowly defined circumstances, including a substantial increase in the hazard insured against. (Insurance Code § 1861.03(c)(1); 10 CCR § 2632.19(b)(1).) That authority is expressly limited by subdivision (e), which prohibits treating a condition as a substantial increase in hazard unless part of the circumstances giving rise to that increase occurred after the most recent issuance or renewal of the policy, or unless the insurer lacked notice of the condition during the 60 days preceding renewal. (10 CCR § 2632.19(e).)

Here, Progressive did not have a VIN or other identifying number when it added the Golf Cart to the Policy on January 2, 2023 or when it renewed the Policy on March 1, 2023. Progressive therefore knew at the time of renewal that it lacked the information necessary to determine the vehicle's classification

and assess the risk.

By renewing the Policy with knowledge that it lacked information it believed was necessary to determine the vehicle's classification and assess the risk, Progressive could not later treat the continued absence of that same information as a post-renewal increase in the hazard insured against. The point is not the label attached to the information requested, but that Progressive knew at renewal that it did not have the information it considered necessary to underwrite the risk.

Insurance Code section 1861.03(c)(1) states that a cancellation is only effective if it is based on three conditions: nonpayment of premiums, fraud, or a substantial increase in the hazard insured against. It does not say a policy may be cancelled for failure to comply with the terms of a supposedly "conditional renewal". 10 CCR § 2632.19, which defines what shall, may, or may not constitute a substantial increase in the hazard insured likewise makes no reference to a "conditional renewal" or the ability of an insurer to cancel a policy based on a supposedly conditional renewal. In fact, neither the Insurance code section nor the accompanying regulation makes any reference to a supposed "conditional renewal". There is no authority stating that an auto insurer may conditionally renew a personal insurance policy while knowingly lacking information it deems necessary, then cancel mid-term when that same information remains unavailable. Moreover, nothing in the documentation said that coverage was conditional, provisional, or subject to later underwriting approval.

Because Progressive lacked statutory authority to cancel the Policy mid-term on these facts, the purported cancellation was invalid. The Policy therefore remained in effect on the date of the accident, and Crosley is entitled to summary judgment on Progressive's cause of action for declaratory relief. The Court need not reach Crosley's alternative grounds for relief.

Objections to Evidence

The court rules as follows on Progressive's objections to evidence.

Incomplete Policy

Progressive objects to Exhibit A to the Crosley Declaration on the ground that the exhibit is not a complete copy of the Policy. Progressive's complaint admits the existence of the policy and that it issued and maintained coverage. (Complaint ¶ 8.) There is no genuine dispute regarding the policy's existence or applicability. Progressive claims the policy is offered to show "circumstances under which policies may be cancelled...." (See Objection, p. 2.) It is not. The objection is overruled.

Plaintiff's Use of his Own Interrogatory Responses

Progressive objects to Crosley's citation to his own amended interrogatory responses under CCP section 2030.410, which governs use of interrogatory answers at trial or hearing. The objection is sustained. (See *Great American Ins. Cos. v. Gordon Trucking, Inc.* (2008) 165 Cal.App.4th 445, 450 [a "party may not use its own interrogatory responses in its own favor" at trial or any other hearing]; see also § 2030.410.) However, the material facts at issue are independently supported by other admissible evidence.

Neuliep Declaration

Progressive objects to the declaration of Steven Neuliep on lack-of-personal-knowledge grounds. Mr. Neuliep declares that he has worked in the golf course industry for over thirty years and has personal knowledge of the characteristics of the subject golf cart. A witness's personal knowledge may be established by the witness's own testimony. (Evid. Code § 702, subd. (b).) The objection is overruled.

Plaintiff's Reliance on the Complaint

Progressive objects to Crosley's reliance on factual allegations in Progressive's own complaint. Facts alleged in an operative pleading may be relied upon in summary judgment. (*Hutton v. Fidelity National Title Co.* (2013) 213 Cal.App.4th 486, 493.) The objection is therefore overruled.

5. 9:00 AM CASE NUMBER: C23-02289
CASE NAME: PROGRESSIVE WEST INSURANCE COMPANY VS. CRAIG CROSLY
***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**
FILED BY:

TENTATIVE RULING:

Progressive West Insurance Company's Motion for Leave to File a First Amended Complaint is **denied**.

Progressive seeks to amend the complaint to allege that cancellation was based not solely on Crosley's failure to provide a VIN, but on his failure to provide a VIN or other numeric identifying information necessary to verify or classify the Golf Cart, and that the policy renewal was effectively conditional pending receipt of that information.

Because the court grants summary judgment in Crosley's favor on Progressive's complaint, the motion for leave to amend is moot. The dispositive issue on summary judgment is whether Progressive had statutory authority to cancel the policy mid-term based on the asserted underwriting deficiency. As explained in the court's summary judgment ruling, mid-term cancellation is barred where the circumstances relied upon by the insurer existed prior to renewal and were known to the insurer at the time of renewal. Here, Progressive knew that lacked information needed to determine the vehicle's classification and assess the risk when it renewed Crosley's policy.

6. 9:00 AM CASE NUMBER: C23-02575
CASE NAME: MATTHEW ANDRADE VS. CHRIS PETLOCK
***HEARING ON MOTION FOR DISCOVERY MONETARY SANCTIONS FOR EGREGIOUS DISCOVERY MISCONDUCT FILED BY ANDRADE, MATTHEW / SEE MINUTES DATED 1/28/2026**
FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Matthew Andrade's ("Plaintiff" or "Andrade") Motion for Sanctions against Defendant Chris Petlock ("Defendant" or "Petlock") is **denied** as set forth herein.

Background

This is a continued hearing from January 28, 2026. The Court had ordered the parties to meet and confer to resolve Plaintiff's request for sanctions in the amount of \$46,343.15 for costs and fees incurred in taking the deposition of Defendant Chris Petlock, who was, at all relevant times, the Human Resources Manager for Defendant Pleasant Hill Recreation and Park District ("District"). The Court ordered counsel to submit declarations outlining their meet and confer efforts no later than